IN THE PESHAWAR HIGH COURT, PESHAWAR
Present:
* Hon'ble Mr. Justice Munib Akhtar
* Hon'ble Mr. Justice Muhammad Ali Mazhar

Civil Appeal No. 863 of 2023
Citation: PLD 2023 Lah 343
Matter ID: MAT-CORP-2023-058

BETWEEN:
M/s Indus Petroleum Exploration Ltd. ... Appellant / Petitioner
VERSUS
Securities & Exchange Commission of Pakistan ... Respondent

LEGAL TOPIC: Corporate - Winding Up & Insolvency
STATUTES CITED: Companies Act 2017, S. 301, Banking Companies Ordinance 1962, S. 40

JUDGMENT
1. This judgment disposes of Civil Appeal No. 863 of 2023, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Companies Act 2017, S. 301 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
For the reasons recorded above, this Court holds that the concurrent findings arrived at by the learned High Court do not call for any interference. The appellant has failed to demonstrate any illegality or procedural irregularity in terms of Companies Act 2017, S. 301. Appeal stands dismissed with no order as to costs.

Decided on: 7 October 2023.